Syllabus of M.Phil

Human Rights & Duties

Session : 2020-2021

Panjab University, Chandigarh
Centre for Human Rights & Duties

Outlines of tests, syllabi and courses of reading in the subject of Human Rights & Duties M.Phil Course for the year 2020-2021 and 2021-22.

(Semester system)

M.Phil I Semester (Compulsory Papers)

PAPER-I: RESEARCH METHODOLOGY (4 Credits = 100 marks)

PAPER-II: CONCEPTS, APPROACHES AND LEGAL FOUNDATIONS OF HUMAN RIGHTS (4 Credits = 100 marks)

PAPER -III: HUMAN RIGHTS AND DUTIES: THE INDIAN PANORAMA (4 Credits = 100 marks)

M.Phil II Semester

PAPER - IV: HUMAN RIGHTS: AN OVERVIEW OF REGIONAL SITUATION (4 Credits =100 marks)

PAPER-V: DISSERTATION AND VIVA VOCE (8 Credits = 150+50=200 marks)

INSTRUCTIONS FOR PAPER-SETTERS AND CANDIDATES:

Papers - I, II, & Paper III

The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks **(10x2=20).** Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units **(4x15=60)**.

M.Phil First Semester

PAPER-I RESEARCH METHODOLOGY

Maximum Marks: 100
End Examination: 80 Marks
Continuous Evaluation: 20 Marks

Objectives

The paper focuses on (a) apprising the students with basic understanding of research methods and techniques (b) imparting skills for investigative and reporting human rights issues and problems (c) equipping students with the ability to measure human rights and (d) utilizing human rights data bases for conducting research.

Pedagogy:

Class room teaching and interaction, workshop method, Term Paper/Assignment, Presentations, Seminars, Class room participation and Field Exposure

Paper: RESEARCH METHODODOLOGY

Course Contents

Unit I: Fundamentals of Social Research

(a) Major Epistemological Schools in Methodology in Social Research
(b) Meaning and Objectives of Social Research
(c) Types of Research/Approaches: Fundamental/Basic; Applied; Evaluative; Quantitative and Qualitative Research; Mixed Method
(d) Reliability and Validity
(e) Concepts and Theory ; Variables; Units of Measurement and Analysis

Unit II: Key Elements of Research

(a) Research Design: Definition and Types- Exploratory, Descriptive, Cross-Sectional, Longitudinal; Experimental
(b) Identification and Formulation of Research Problem
(c) Review of Literature: Purpose, Sources, Format
(d) Research Questions
(e) Hypothesis: Definition; Features and Types; Formulation and Testing

Unit III: Determining Sampling and Data Collection and Processing Strategies

(a) Types of Data: Primary and Secondary
(b) Types of Human Rights Measures : Events-Based Measures, Standard-Based measures and Socio-Economic and Administrative Statistics
(c) Sampling: Probability and Non-Probability Methods,
(d) Data Collection Tools : Interview Method ; Questionnaire; Observation; FGDs; Ethnography; Case Study
(e) Statistics : Descriptive and Explanatory, Measures of Central Tendency; Measures of Dispersion; Correlation and Regression

Unit IV: Data Presentation and Report Writing

(a) Research Ethics
(b) Elements of Effective Research Writing including Bibliography, tools for checking plagiarism
(c) Use of computer software/ statistical packages for data processing and analysis (Ms Excel; SPSS and R)
(d) Human Rights Documentation Databases : Martus Client Software and Open EvSys
(e) Use of computer software to organise materials and cite references (Mendeley and MS Word)

Essential Readings:

Adcock, R. and Collier, D.(2001), 'Measurement validity: A shared standard for qualitative and quantitative research'. *The American Political Science Review*, 95(3):529-46.

Ajay S. Gaur & Sanjaya S. Gaur (2007), *Statistical Methods for Practice and Research: A Guide to data analysis using SPSS*. Sage Response Books: New Delhi.

Apodaca, C.(2007) ' Measuring the Progressive Realization of Economic and Social Rights' in S.Hertel and L. Minkler (eds) *Economic Rights:Conceptual, Measurement and Policy Issues*, Cambridge University Press.

Asher, Banks & Scheuren (2007), *Statistical Methods for Human Rights*, Springer.

Balakrishnan, R. and Elson, D. (2008) 'Auditing Economic Policy in the light of Obligations on Economic and Social Rights', *Essex Human Rights Review*, Special Issue 5 (1) on HR Perspectives: What we Have Learnt so far, http:< ehrr.org>.

Ball, P.B., Asher, J., Sulmont, D., and Manrique, D. (2003), How Many Peruvians Have Died? Washington, DC: American Association for the Advancement of Science (AAAS). http://shr.aaas.org/peru/aaas_peru_5.pdf. Best example of the estimation of events-based human rights data using the case of Peru 1980-2000.

Ball, Patrick, (1996), 'Who did what to whom? Planning and implementing a large scale human rights data project. Washington: AAAS. http://shr.aaas.org/www/cover.htm.

Ball, Patrick; Paul Kobrak and Herbert F. Spirer, (1999), *State violence in Guatemala, 1960-1996: a quantitative reflection*. Washington: AAAS. http://shr.aaas.org/guatemala/ciidh/qr/english/qrtitle.html.

Ball, Patrick; Spirer, Herbert S. and Spirer, Louise (2000), *Making the case: investigating large scale human rights violations using information systems and data analysis*, Washington: AAAS. http://shr.aaas.org/mtc/.

M.Phil First Semester

Barsh,R.L.(1993) 'Measuring Human Rights : Problems of Methodology and Purpose', *Human Rights Quarterly*, 15(1): 87-121.

Cain, M., Claude, R.P. and Jabine, T.B (1992), ' A guide to Human Rights Data Sources' in T.B Jabine and R.P. Claude (eds.), *Human Rights and Statistics : Getting the Record Straight*, Philadelphia : University of Pennsylvania Press.

Coffey, Amanda, and Paul Atkinson (2007), *Making sense of qualitative data complementary research strategies*. Thousand Oaks [u.a.]: Sage.

Comprehensive review with examples of the ways in which human rights are measured

Dueck, Judith; Manuel Guzman and Bert Verstappen, (2001), HURIDOCS events standard formats: a tool for documenting human rights violations. Versoix: HURIDOCS. http://www.huridocs.org/standard.htm#revesf.

Dueck, Judith; Manuel Guzman and Bert Verstappen (2001), HURIDOCS micro-thesauri: a tool for documenting human rights violations. Versoix: HURIDOCS.http://www.huridocs.org/standard.htm#microthes.

A collection of 48 human rights thesauri developed by HURIDOCS or adapted from various sources.

Green, M. (2001), 'What we talk about when we talk about indicators: Current Approaches to Human Rights Measurement', *Human Rights Quarterly*, 23, 1062-1097.

Hafner-Burton, E. and Ron, J. (2007), Special Issue on Human Rights, *Journal of Peace Research,* 44/4. (Illustration for the use of standards-based measures of human rights in political science research).

Hertel, S. and Minkler, L (eds.), (2007), *Economic Rights: Conceptual Measurement and Policy Issues,* Cambridge: Cambridge University Press. For review of the conceptual and methodological issues surrounding the measurement of economic and social rights.

Hafner-Burton & Ron (2009), 'Seeing Double: Human Rights Impact Through Qualitative and Quantitative Eyes', *World Politics* 61, no. 2, http://papers.ssrn.com/sol3/Delivery.cfm/SSRN_ID1292431_code1003168.pdf?abstractid=1287858&mirid=1

Jabine, T.B and Claude, R.P. (eds) (1992), *Human Rights and Statistics: Getting the Record Straight,* Philadelphia, PA: University of Pennsylvania Press.

For overview of human rights measurement including theoretical and methodological issues

M.Phil First Semester

King, Keohene and Verba: Designing Social Inquiry: Scientific Inference in Qualitative Research

Landman, T. (2004), 'Measuring Human Rights: Principles, Practice, and Policy, *Human Rights Quarterly*, 26 (November), 906-931.

Landman, T., (2009), 'Measuring Human Rights' in M.Goodhart (ed.), *Human Rights: Politics and Practice,* Oxford: Oxford University Press.

Mazumdar PK, (2005), *Research Methods in Social Science*, New Delhi: Viva Books Private Limited.

Nachmias, D. and C. Nachmias (1981), *Research Methods in the Social Sciences,* New York: St. Martin's Press, 2nd Edition.

Todd Landman and Edzia Carvalho (2010); *Measuring Human Rights*, Routledge: New York.

Reswell J. W. (2003). *Research Design: Qualitative, Quantitative, and mixed method Approaches,* Thousand Oaks, Calif, Sage Publications.

UN, (2000), *Centre for Human Rights*, *Human Rights Training: A Manual on Human Rights Training Methodology,* New York: UN.

UN (1991), *Centre for Human Rights: A Manual of Human Rights Reporting,* New York: World Campaign for Human Rights.

Web Links

http://www.freedomhouse.org Freedom House: two standards –based scales on civil and political rights from 1972, updated annually.
http://www.politicalterrorscale.org Political terror scale: standards-based on personal integrity rights from 1976 to 2006, updated occasionally.

http://www.humanrightsdata.com Cingranelli and Richards human rights data: large collection of standards-based data on seventeen different human rights from 1980 to 2006, updated occasionally.

http://www.hrdag.org Human Rights Data Analysis Group: world leading organization in the production and analysis of events-based data on human rights.

Further Readings:

Goode, W. J. and P.K. Hatt (1952), *Methods in Social Research,* New York: McGraw-Hill.

Lee, Ellis (1994), *Research Methods in the Social Sciences,* Madison: Brown and Benchmark.

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Mukherjee, Partha N. (2000), *Methodology in Social Research,* New Delhi: Sage.

Mathukutty M. Monippally & Badrinarayan Shankar Pawar, (2010), *Academic Writing,* New Delhi, Sage.

Sharma, B.V.A. (ed.) (1983), *Research Methods in Social Sciences,* New Delhi, Sterling.

PAPER II: CONCEPTS, APPROACHES AND LEGAL FOUNDATIONS OF HUMAN RIGHTS

Maximum Marks 100
End Examination: 80 Marks
Continuous Evaluation: 20 Marks

Objectives: The objectives of this paper are to (a) acquaint students with the conceptual aspects of human rights and duties, (b) introduce alternative approaches to Human Rights, (c) situate human rights in the international legal framework.

Pedagogy: Class room teaching and interaction, workshop method, Term Paper/Assignment, Presentations, Book Review, Field Exposure and Seminars.

Course Content:

UNIT – I Human Rights Concepts:

(a) Normative and Positivist

(b) Universalism and Cultural Relativism (Western & Non- Western notions of Human Rights and Asian Values)

UNIT – II Approaches to the study of Human Rights:

(a) Natural Rights Approach

(b) Liberal Approach- Utilitarian & Egalitarian

(c) Marxian Approach

(d) Feminist Approach

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UNIT – III Basic Universal Rights Doctrine and Supra-positive Obligations

(a) Beyond Legal Positivism

(b) The Universal Principle to Respect and Observe Human Rights

(c) Basic Rights Today and Community Obligations

UNIT – IV Human Rights: International Legal Framework

(a) The Development of Human Rights as part of International Law Obligations

(b) International Human Rights Obligations: States, Individuals, Organizations and Non-State Groups

(c) Global legal responsibility: Due Diligence Requirement and the Global Care Standards

Essential Readings:

Alston, Philip and Henry Steiner (2007), *International Human Rights in Context: Law, Politics, Morals*, 3rd Edition, Oxford: Oxford University Press.

Austin, John, (1995), *The Province of Jurisprudence Determined*, Cambridge, U.K: Cambridge University Press.

Bentham, Jeremy, (1996), *An Introduction to the Principles of Morals and Legislation*, Oxford University Press.

Brownlie, Ian, (1990), *Principles of Public International Law*, 4th edn, Oxford: Clarendon.

Donnelly, Jack (2013), *International Human Rights,* Colorado: West view Press.

Freeman, Michael, (2003), *Human Rights: An Interdisciplinary Approach*, Blackwell: USA.

Fredman, Sandra, (2008), *Human Rights Transformed: Positive Rights and Positive Duties,* Oxford University Press.

Mill, John Stuart, (1998), *Utilitarianism*, Oxford University Press.

Morris, Lydia, (2006), *Rights: Sociological Perspective,* London Routledge.

Rawls, John, (2005), *A Theory of Justice*, Universal Law Publishing Co. Pvt. Ltd,
Rousseau, Jean- Jacques, 'The Social Contract' (1762), available at http://www.constitution.org/jjr/socon.htm.

Andras Sajo, (2004), *Human Rights with Modesty: The Problem of Universalism, Boston* Martinus Nijhoff Publishers, Boston.

Salomon, Margot E., (2007), *Global Responsibility for Human Rights,* Oxford University Press.

Shearer, I.A, (2007), *Starke's International Law*, 11th ed., Oxford University Press: New Delhi.

Symondies, Janusz (2002), *Human Rights: Concept and Standards*, New Delhi: Rawat Publications.

Whelan, Daniel J (2010), *Indivisible Human Rights: A History*, United States: University of Pennsylvania Press.

Further Readings:

Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage.

Mishra, Pramod (ed.) (2000), *Human Rights in South Asia, New* Delhi: Kalpaz Publications.

South Asian Human Rights Documentation Centre (SAHRDC), (2008), *Human Rights and Humanitarian Law,* New Delhi: Oxford University Press.

M.Phil First Semester

PAPER – III HUMAN RIGHTS AND DUTIES: THE INDIAN PANORAMA

Maximum Marks: 100
End Examination: 80 Marks
Continuous Evaluation: 20 Marks

Objectives: This paper has been designed to (a) providing insights into the Constitutional mechanisms, (b) comprehending the working of institutional mechanisms formed for protection and promotion of human rights in the backdrop of the politics and society in India and (c) familiarizing the students with the challenges confronting implementation and enforcement of human rights framework in India.

Pedagogy: Class room teaching and interaction, workshop method, Term Paper/Assignment, Presentations, Book Review, Field Exposure and Seminars.

Course Content:

UNIT – I Constitutional Mechanism

(a) Preamble
(b) Defining Reasonable Restrictions on Fundamental Rights
(c) Directive Principles of State Policy
(d) Interrelationships between Fundamental Rights & Directive Principles of State Policy
(e) Indian Constitution and International human rights

UNIT – II Institutional Mechanism

(a) Critical Appraisal of Institutions: Human Rights Commissions, SC and ST Commissions, Minorities Commission, National Commission for Women, Commission for Protection of Child Rights
(b) Dispute Redressing Agencies:
(i) Judiciary, Use of PIL
(ii) Alternative Dispute Resolution (ADR)

UNIT – III Problems of Enforcement of Human Rights in India

(a) Use, Abuse and Misuse of Executive of power, with regard to arrest, detention, torture and deaths in police custody
(b) Human Rights and Special Laws:
(i) AFSPA,
(ii) UAPA
(c) Inaccessibility of redress due to poverty and illiteracy

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UNIT – IV Contemporary Issues

(a) Globalization and WTO Regime: Agriculture, Environment, Public Health
(b) Development, Displacement and Migration
(c) Organized Crime: Drug Trafficking, Human Trafficking and Terrorism
(d) Civil Society Activism

Essential Readings:

Alam, Aftab (ed.) (1999), *Human Rights in India: Issues and Challenges,* New Delhi: Raj Publications.

Austin, Granville (2000), *Working of a Democratic Constitution: The Indian Experience,* New Delhi: Oxford University Press.

Austin, Granville, (2007), *The Indian Constitution,* New Delhi: Oxford University Press.
Austin, Granville, (2007), *Working of a Democratic Constitution: A History of the India Experience,* Oxford University Press.

Bagchi, Subrata Sankar (ed.), (2009), *Expanding Horizons of Human Rights,* New Delhi: Atlantic Publishers.

Basu, D.D. (2009), *Introduction to the Constitution of India*, Nagpur, New Delhi, Nexus Lexis, Butterworths.

Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.

Begum, S.M. (ed.) (2000), *Human Rights in India: Issues and Perspectives,* New Delhi: APH Publishing.

Benedek Wolfgang et al, (2007), *Economic Globalization and Human Rights: UK* Cambridge: University Press.

Bhatia, Gautam (2016), *Offend, Shock, Or Disturb: Free Speech Under the Indian Constitution*, New Delhi Oxford: University Press.

Choudhry Sujit, Khosla Madhav, Mehta, Pratap Bhanu Eds. (2016), *The Oxford Handbook of the Indian Constitution,* Oxford University Press.

Chowdhury, Azizur Rahman et al. (ed.), (2010), *Issues in Human Rights,* New Delhi Atlantic Publishers.

Das. A. .K. (2007), *Human Rights in India*, New Delhi, Sarup Book Publishers.

Neier, Aryeh (2012), *The International Human Rights Movement: A History*, New Jersey: Princeton University Press.

Paul, R.C. (2000), *Situation of Human Rights in India,* New Delhi: Commonwealth Publishers.

Rao, Ashiwini (2010), *Status of Human Rights in India*, New Delhi: Pacific.

Sathe, S.P., (2002), *Judicial Activism in India: Transgressing Borders and Enforcing Limits,* Oxford University Press.

Salomon, Margot E, (2007), *Global Responsibility for Human Rights,* Oxford University Press.

Shahbadi Amrita, (2007) *World Trade Organization* New Delhi, A.P.H. Publishing Corporation.

Further Readings:

Fredman, Sandra, (2008), *Human rights Transformed: Positive Rights and Positive Duties,* Oxford University Press.

Fischlin Daniel and Nandorfy, Martha, (2007), *The Concise Guide to Global Human Rights,* Oxford University Press.

Jain Sampat, (2003), *Public Interest Litigation,* Deep and Deep Publications, New Delhi.

Nirmal, Chiranjivi J., (2006), *Human Rights in India: Historical, Social and Political Perspective,* Oxford University Press.

M.Phil Second Semester

PAPER – IV HUMAN RIGHTS: AN OVERVIEW OF REGIONAL SITUATION

Maximum Marks: 100
End Examination: 80 Marks
Continuous Evaluation: 20 Marks

Objectives: The paper has been developed to (a) provide students a broad idea about the regional situation of human rights in the contemporary world, (b) make them develop analytical skills to compare and contrast official human right reports with alternate reports and (c) acquaint them with regional compliance on Universal Periodic Review of Human Rights.

Pedagogy: Class room teaching and interaction, workshop method, Term Paper/Assignment, Presentations, Book Review, Field Exposure and Seminars.

Course Content:

UNIT – I Americas

UNIT – II Europe and Central Asia

UNIT – III Asia- Pacific

UNIT - IV North Africa, South Africa and the Middle East

Essential Readings:

Amnesty International Report (2016-17)

Brown M. Anne (2002) , *Human Rights and the Borders of Suffering The Promotion of Human Rights in International Politics*, New York, Manchester University Press.

Cassese Antonio, (2008), *The Human Dimension of International Law- Selected Papers,* Oxford Oxford University Press.

Conflict, Media and Human Rights in South Asia, Report from a Round Table (2011), International Council on Human Rights Policy, Panos South Asia and the Tata Institute of Social Sciences, Mumbai.

Country Reports of Inter American Commission on Human Rights

Fleck Dieter (ed.) (2008), *The Handbook of International Humanitarian Law*, Oxford University Press, Oxford

Hebron Lui. and John F. Stack Jr.ed. (1999), *The Ethnic Entanglement: Conflict and Intervention in World Politics*, London. PRAEGER.

Human Rights Watch *World Report*, (2007), Book well Delhi.

Robertson Charles L..(1997),*International Politics since World War II: A Short History,* M.E. Sharpe: Armonk, New York.

Steiner J. Henry, Alston Phlilip, Goodman Ryan (2008), *International human rights in context: law, politics, morals: text and materials,* Oxford University Press, Oxford, New York.

Stoll Richard J. and Michael D. Ward (1989), *Power in World Politics* , Lynne Rienner: Boulder & London.

Taylor and Francis (2012), *The International Journal of Human Rights*.

The Europa World Year Book ed. (2010-2016), Europa Publications, Rutledge.

OHCHR Country Reports.

Reports of Amnesty International.

Reports of Human Rights Watch.

*Reports and documents of South Asia Human Rights Documentation Centre (*SAHRDC).

Reports and Publications of Human Rights Commission South Asia (HRCSA).

UNHCR Universal Periodic Review (2017).

World Report (2016), Human Rights Watch.

World Report (2017), Human Rights Watch.

Web Links

IACHRReports http://www.oas.org/en/iachr/media_center/PReleases/2012/025.asp

OHCHR, www.ohchr.org/EN/HRBodies/SP/Pages.

UN Human Rights Reporting www.unesco.org/.../improving-human-rights-reporting-in-timor-leste/ -

M.Phil Second Semester

PAPER – V DISSERTATION AND VIVA VOCE

Maximum Marks: 200
Dissertation: 150 Marks
Viva Voce: 50 Marks